

Franz Neumann's *Behemoth* and Trumpism: Comprehending the Beast of Bad Government

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As the Trump administration enters its fourth year, it is time to return to comparisons that abound in popular commentary between Trumpism and National Socialism.¹ These comparisons are apt. Though Donald J. Trump was a *rentier* capitalist, television personality, and dilettante politician, he obtained the presidency by adopting themes, policy positions, and rhetorical styles reminiscent of National Socialists. Trump's ethnic nationalist campaign promised to "Make America Great Again." This was to be accomplished by cleansing the nation of "illegal immigrants," building a wall on the southern border with Mexico, excluding visitors from Muslim countries, locking up his political opponent, strengthening the military, and waging an enhanced war on terrorism. Trump further promised an "America First" economic policy that would repatriate manufacturing jobs by renegotiating trade deals and by establishing a regulatory and tax environment favorable to U.S. capital. During the general election campaign, Trump's campaign rallies drew larger, more effervescent crowds who chanted slogans of symbolic violence in response to Trump's increasingly strident rhetoric. Comparisons to National Socialism intensified in the years following the election as Trump appointees with ties to the "Alt-Right" and European ethnic nationalist movements assumed prominent positions in his administration.

So, is Trump a new Hitler, and is Trumpism a new form of Nazism as suggested by many critics? Rather than making simple assertions about similarities and differences between these two illiberal movements, this chapter approaches these questions with a (re) reading of the most detailed analysis of the rise of Hitler, the Nazi Party and the Nazi state: Franz Neumann's (1944) *Behemoth: The Structure and Practice of National Socialism, 1933–1944*. Neumann, a labor lawyer, Marxist political scientist, and associate of the exiled Institute for Social Research, analyzed National Socialism as

1 This chapter is an updated version of Dan Krier's "Behemoth Revisited: National Socialism and the Trump Administration" from *Logos*, Volume 16, Issues 1–2, 2017, <http://logosjournal.com/2017/behemoth-revisited-national-socialism-and-the-trump-administration/>.

a contradictory structure of four “machines:” the machinery of the Nazi party, the apparatus of the bureaucratic-administrative state, the military, and industrial corporations in cartels, trusts and other monopoly capital forms. Tensions between these four machines were mediated by the Fuhrer or Leadership principle and by anti-Semitic “racial proletarian” ideology, both of which broke up class formation and class consciousness, atomizing workers into easily controlled and manipulated mass formations. As a social system, Nazism blocked workers from unifying against capital, preventing class solidarity and egalitarian democratic rights. Workers masochistically submitted to “leaders” while sadistically identifying as a racial *Volk* superior to degraded, internal enemies.

Parallels abound between National Socialism and the Trump administration's positions and ambitions. National Socialism and Trumpism shared a distrust of liberalism and fear of working-class solidarity that might challenge or overthrow capital. Both had an ambivalent relationship to the state, glorifying military power, hierarchy and obedience, and National Socialism further promoted an ideal of society “fused into the army” (Neumann 2009 [1944]: 6). National Socialism sought to invert liberalism's strong civil society/weak state by reasserting a particular form of state power over civil society. To Neumann, “the imperialism of German monopoly capitalism” had destroyed the economic foundation for bourgeois civil society that had depended upon small capital, handicraft industries and competitive trade. Monopoly capital had centralized, cartelized, and concentrated industry, forcing out small business and liberal civil society based upon it, leaving behind a “network of authoritarian organizations” (14). National Socialism did not seek to restore competitive small capital and civil society, but rather embraced the economic efficiencies that resulted from rationalization, concentration and bureaucratization. Politically, monopoly capital dramatically expanded the pool of undifferentiated labor as small capitalists, craftspeople and tradesmen were displaced by big business. Enormous firms of great complexity yielded high efficiency, but reduced workers to an undifferentiated mass underneath highly technical administration.

The fallen or displaced middle-classes were one core constituency of National Socialism. But there were many others, including “the most diverse social strata ... never hesitating to take in the dregs of every section, supported by the army, the judiciary, and parts of the civil service, financed by industry, utilizing the anti-capitalist sentiments of the masses and yet careful never to estrange the influential moneyed groups” (33). No single, stable ideology could tie these groups together. Neumann describes the ideological writings of National Socialists as “abominable, the constructions confused, the

consistency nil. Every pronouncement springs from the immediate situation and is abandoned as soon as the situation changes" (37). Underneath "a mass of irrelevant jargon, banalities, distortions, and half truths" lay ongoing promotion of imperialism and the interests of monopoly capital (38). Neumann's description of Nazi ideology mirrors contemporary analysts of Trump's confused pronouncements: the ideas are "constantly shifting," promoting "certain magical beliefs," including "leadership adoration ... [and] the supremacy of the master race" but without system or consistency (39). Like contemporary analysts of Trump's supporters, Neumann asserts that only a minority of Germans was ardent Nazi's. For most, its ideological message left them cold.

Both National Socialism and Trumpism were illiberal and critical of the weak political leadership of the "night watchman's" liberal democratic state" (42). Following Carl Schmitt, both reject the basic principles of liberal parliamentarianism: deliberation and debate, separation of powers, and universal law. To Schmitt, "rigid party discipline" meant that "debate is a fraud" and that "secret committees" made decisions behind closed doors so that the "publicity of the debate is a sham" (43). Since monopoly capitalism eroded the essential features of civil society (freedom of speech, assembly press, association), and since parliamentary procedures were ineffective, the desire for rapid decision, efficiency, and strength led to a glorification of executive power: hence, "all power to the president" (44). Trumpism clearly shares such a desire for executive sovereignty along the lines of Carl Schmitt.

1 Schmitt's Decisionism, the Enemy, and the State of Exception

Carl Schmitt's "decisionism," the dominant political philosophy of National Socialism, grounded sovereignty in power to declare a "state of exception" while placing the friend-enemy distinction at the center of politics (Schmitt 1985, 1996; Agamben 1995, 2005). In this philosophy, politics is organized by an existential struggle against enemies "who must be exterminated physically" (Neumann 2009 [1944]: 45). The political emerges when opponents, competitors, outsiders, subordinates, and challengers were defined as 'enemies' who could neither be tolerated nor accommodated but must be destroyed (Schmitt 1996: 26, 49; Schmitt 2004: 64–6).

The Nazi state was more authoritarian (hierarchical rule of leader over subordinates) than totalitarian (identity between ruler and ruled). Hence, hierarchical leadership was rooted in superior rank that was "valid against the people's will" (Neumann 2009 [1944]: 48). Nazi's viewed the state as the "form of life of the racial people" that provided "unconditional authority" while maintaining

(limited) autonomy for monopoly capitalism (50). To Schmitt, sovereignty emerges in the capacity to declare and inhabit a “state of exception,” a charismatic claim that sets aside rational-legal and traditional forms of law so that sovereignty is absolute, unlimited (Schmitt 1985: 5; Schmitt 2006b: 13–4). Hitler famously assumed emergency powers that were sustained throughout the entire Nazi period: the Nazi state was in a perpetual exception, a non-ending state of emergency that provided Hitler supreme sovereign power.

Adolph Hitler is top leader. He combines the functions of supreme legislator, supreme administrator, and supreme judge; he is the leader of the party, the army and the people. In his person, the power for the state, the people, and the movement are unified.

NEUMANN 2009 [1944]: 84

Hitler was “sole legislator” whose will was the law, an embodiment of the executive, legislative and “infallible” judicial function, as well as supreme commander of armed forces, whose “power is legally and constitutionally unlimited” (Neumann 2009 [1944]: 84). A full appreciation of the nature of sovereignty and the absolute consolidation of power in the hands of Hitler as Führer emerges from a review of the oath of office required of every soldier in the army: “*I swear this holy oath to God; that I shall give unconditional obedience to Adolf Hitler, Leader of the Reich and the people, supreme commander of the army ...*” Similar oaths were sworn by all cabinet members and civil service office holders: “*I swear that I shall be true and obedient to Adolf Hitler, the Leader of the German Reich and the people, that I shall obey the laws and fulfill my official duties conscientiously, so help me God*” (84–5). These oaths of fidelity and loyalty to the person of Hitler contrast strongly against those sworn by U.S. soldiers: “*I do solemnly swear (or affirm) that I will support and defend the Constitution of the United States against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; and that I will obey the orders of the President of the United States ...*” (Oath of Enlistment n.d.).

National Socialism was constituted by full Schmittian sovereignty, supreme leadership of a personal, idolatrous, *charismatic* kind that was unconditioned by rules, laws, regulations or universal law. The U.S. elevation of constitutional law to the position of sovereignty that could not (in ordinary times) be overriden or suspended by persons has been a crucial defense against Nazism. This is what makes a “state of exception” so dangerous: the temporary suspension of the rule of law consolidates absolute sovereignty in the charismatically justified hands of a single person. Liberal democracies, including the U.S., have been rooted in deliberative decision-making, dismissed by Schmitt

as “government by discussion” (Sorrell 2003: 227), as well as the separation of powers, and judicial review. Sovereignty is further divided by the distribution of governance in a nested, multi-form array of jurisdictions (federal, state, local) that are inefficient and problematic from the standpoint of decisionism, but that serve as crucial circuit breakers against consolidated Nazi-like power. As Neumann reports, Hitler dissolved the power of individual states within the Reich to maintain state-level legislatures or to elect state officials. The Reich usurped all authority formerly possessed by states and municipalities so that authoritarian control was “complete from top to bottom” (Neumann 2009 [1944]: 55). While it is difficult to imagine Trump (or his successor) in possession of sufficient sovereign power to remove all state governors and replace them with appointees under his control. However, the Republican party has been surprisingly successful in securing judicial appointments for deeply conservative, highly partisan jurists.

Trump’s rise to office occurred in the context of an almost non-existent legislative function in the United States. Lawmaking, such as it was, during the 21st century, has been accomplished primarily through executive orders or, in the language of Neumann and Schmitt, decree (Schmitt 2014b: 7–9). The Schmittian state of exception similarly depowers the legislative function so that the executive absorbs lawmaking: Neumann describes the Nazi-era Reichstag as a “mere ornament.” Under Trumpism, the U.S. legislature has almost ceased to function as a lawmaking body. Congress and the Senate pass few laws of note, and their co-equal status in the separation of powers has been severely eroded under Trumpism. Republican partisans have largely overridden congressional oversight of executive action, including powers to review administrative and judicial appointments, to investigate the administration, or to impeach the president.

Nazi criticisms of parliamentary deliberation and debate are strangely applicable to the U.S. situation under Trump. Though congressional and senate rules of evidence and procedure were nominally designed to facilitate high-quality debate and to optimize collective decision, such legislative debate has all but vanished. Party leaders in consultation with and command of corporate owners formulate public issues and policies privately, without public deliberation. The Tax Cut and Jobs Act of 2017, for example, was crafted outside of public view and without opportunity for public input. The law was an entirely partisan affair: the law was shaped exclusively by Republicans and passed into law without any votes from outside the party. The legislative branch in the United States no longer debates issues in an open forum, and few legislators change their minds or consider the words and viewpoints of colleagues outside their own party. Party discipline that aggressively punishes dissent

prevents independent exercise of legislative judgment. Therefore, actual law making has shifted to the executive branch: the office of the president serves as “lawmaker in chief” through executive decree.

2 The Party over the State

Like contemporary Republicans in the U.S., Nazi's were primarily attached to and pursued the interests of party rather than country. As Hitler noted, “the state is not our master; we are the masters of the state” (Neumann 2009 [1944]: 65). Neumann characterized changing conceptions of the relationship of the Nazi party to the Nazi state by describing National Socialism both as a “movement state” and using Carl Schmitt's phrasing, a “tripartite state,” in which state, movement, and people (nation as racial *Volk*) remain distinct from each other. The Nazi party as the dynamic element (movement), provided leadership to the other parts of state, mediating between, dominating, and uniting them (66). Neumann notes that in the USSR, the Communist party completely dominated the state; in Italy, the fascist state completely dominated the party; while in Germany, the Nazi state remained in tension with the party, united together by the leadership principle (“Adolf Hitler, who is both leader of the party and chief of state. ...”).

The charismatic nature of Nazi party power brought it into contradiction with the “rational bureaucracy” of the administrative state. The state was saturated with the characteristic traits specified in Weber's famous ideal type concept of bureaucracy: “precision, permanency, discipline, reliability ... rationality ... impersonality ... [action] without hate or passion ... duty ... without regard to person, with formal equality for everyone” (80). Charismatic authority operates on an entirely different logic – magical, emotional, unsystematic, vanishing – hence the party and its leaders by necessity rejected and attacked the administrative state because rational law and formal order were contrary to charisma. Decisionism, the supreme power of a sovereign under charismatic authority, depends upon the state of exception, which is by definition a suspension of bureaucratic, rational-legal authority. It would seem that the fantasies of the Trump administration were fully aligned with its Nazi predecessor, as highlighted by Steve Bannon, one-time Chief Strategist of the Trump White House, when he stated that a primary objective of the Trump administration was the “deconstruction of the administrative state” (see below).

The Nazi party as a bureaucratic structure was autonomous from the Nazi state to a remarkable degree, with its own party courts, its own party sources of revenue, freedom from state taxation and from state control. Yet, by the 1930s,

the party had grown so large that it had itself become a massive bureaucracy with thousands of officials in leadership positions in both the party hierarchy and state bureaucracies, a paramilitary organization that rivaled many standing armies, massive youth organizations and leadership control over most of associations in civil society. Compared to Hitler, who was the most important architect and developer of the Nazi party and who was fully identified with the party as its leader, Trump's relationship to the Republican Party that he now leads was haphazard, even laughably accidental (he was registered as a Democrat in the early 2000s). Hitler's party had bureaucratic durability, despite its charismatic claims. At the time of his election, Trump had built no formal party at all, but had called forth spontaneously assembled mobs of spectators with weak ties to formal party leadership. Hence, Trump's authority originally rested upon the unstable footing of charisma and should he have failed to prove his charismatic claims, there was little institutional structure to fall back upon. Charismatic leadership is always a vanishing phenomenon, and when Trump's term ends, or should he quit, or become enfeebled, a "crisis of succession" will almost certainly arise.

Has Trumpism become a partisan movement in a manner similar to National Socialism? This question leads to a consideration of Schmitt's "theory of the partisan." In line with his conception of the tri-partite state, Schmitt views parties as dynamic, charismatic forces that emerge to lead a traditional, racial *Volk* and to dominate and disrupt the legal-state apparatus. Schmitt defines friend-enemy distinctions at the center of politics and affirms Clausewitz's famous dictum that warfare is an extension of politics by other means. To Schmitt, partisans are spontaneously-ordered, non-uniformed, irregular warriors who remain distinct from bureaucratically-organized, uniformed, regular soldiers. Partisans form paramilitaries, people's armies, and militias. Partisans struggle against enemies as guerillas, co-combatants, or freedom fighters in a spontaneous, autonomous fashion without a "duty to obey" military command (Schmitt 2004: 22). Schmitt identifies four criteria characteristic of partisans: 1. Irregularity: autonomy from formal military command, 2. Mobility of combat: guerilla resistance tactics, sabotage, and terror, 3. Intense political commitments: does not fight on his own account but in advance of an existential cause not personal gain, 4. Tellurian character: fight in defense of "patch of true home soil" in order to preserve the way of life of a spatially-rooted, autochthonous *Volk* (13–4, 50). Partisan warfare violates many of the core categories of classical martial law, eliding distinctions between war/peace, combatants/non-combatants, and enemies/criminals. Partisan warfare is not a "contained" war between states but "real enmity" between existential enemies: partisan struggles do not result in peace treaties or return to normalized co-existence.

They are uncontained, totalized, wars – such as civil wars or colonial wars – with intensive commitments to “resistance to the end” and complete “annihilation” of real, existential enemies (6–7). Schmitt emphasizes that partisans played decisive roles as irregular, non-uniformed, resistance fighters in wars since Napoleon (8–9). Modern wars are partisan wars whose outcomes are determined by charismatically qualified, irregular resistance fighters called forth from a traditional *Volk* who defensively combat an enemy’s bureaucratically disciplined regular soldiers in an existential struggle to the death.

Schmitt’s conception of the partisan contrasts sharply with classical liberalism, in which political parties are opponents who engage in parliamentary debate in search of compromise (a sort of peace treaty) rather than annihilation of enemies. Schmitt’s equation of partisanship with guerilla warfare accounts for many features of National Socialism. For example, paramilitaries appear as uniquely important agents within National Socialism throughout Neumann’s book. The S.S. and S.A. remained under the command of party leadership and were autonomous from and immune to the state bureaucracy and the directives of the official military (Neumann 2009 [1944]: 69–71). As irregular partisans, paramilitaries unleash all the lethal violence of formal armies, but without their constraining rules, formal regulations and disciplinary controls. Germany had a long tradition of paramilitaries (militia) that served as retention structures for officers, soldiers, and munitions suppliers between formal military deployments. Paramilitaries such as the *Freikorps* mustered routinely, maintained discipline, traditions and systems of honor and were heavily involved in the extra-legal civil war after the end of WWI (Theweleit 1989; Amidon and Krier 2009). Trump’s support was especially strong among gun enthusiasts and Second Amendment activists, including those with strong rebel-authoritarian tendencies and psychological attachment to myths of American outlaw biker gangs, badass militia, moonshine running stock car racers, and other cultural forms of anti-establishment rebellion (Krier and Swart 2016: 150–82). Post-election analysis provides convincing evidence of his appeal and popularity in red states, areas of stagnation, who were most vulnerable to his appeal to bring back jobs, creating new wealth and prosperity in the rust belt, coal mining and other industries that have migrated to other low production cost countries (Oberhauser, Krier, and Kusow 2019).

Trump has even called upon his supporters to function as a paramilitary, asking them to harass and violently silent protestors at rallies and to ride Harley-Davidson motorcycles as a defensive shield against protestors at his inauguration. The Trump administration has granted broad powers to Immigration and Customs Enforcement (ICE) officers and has hampered congressional and journalistic oversight of their activities. Though employed

by the state and uniformed, ICE officers are under unconstrained command of the Trump administration, and function closer to irregular partisans than regular soldiers. During the coronavirus pandemic, the Trump administration has called upon partisans to conduct armed, disruptive protests of pandemic response policies in states governed by ‘enemies’ of the administration. The Trump administration has called upon supporters to act as partisans in retaliation against other “enemies,” including journalists, late-night talk show hosts, congressional leaders, and celebrities. At this date, it remains difficult to envision gun toting, Second Amendment defending supporters of Trumpism forming either a party-directed standing militia or a people’s army with sufficient strength, discipline and acumen to pose a threat to regular, uniformed, armed forces (try to imagine a random collection of his aging, out-of-condition rally attendees marching in uniform, rifles at attention, vigorously goose-stepping in disciplined formation). Despite their admiration for Nazi militia, it remains unlikely that Trump supporters could function as a party-directed paramilitary equivalent to the S.S. In part, this is due to the purely personal quality of Trump’s following: the strongest adherents of Trumpism are loyal to Trump the man not Trump the leader of the Republican Party. Like Trump himself, supporters of Trump lack intense political commitments that Schmitt viewed as essential to distinguish partisans from mere thieves, criminals, and pirates whose “bad deeds ... aim at private theft and profit” (Schmitt 2004: 10). Trump rarely displays intensive political commitments but often fights on his own account, engaging in twitter battles against imagined personal foes rather than political enemies. Trump’s preoccupation with politically irrelevant *ad hominem* attacks is not entirely inconsistent with fascist propaganda (Adorno 1982: 118), but these struggles are outside the conceptual bounds of Schmittian partisanship.

3 Anti-Semitism and the Racial Volk

As a Marxist, Neumann analyzes National Socialism’s “all-pervading anti-Semitism” as an ideology that disrupted working class solidarity and class-consciousness. Rather than identify as a proletariat vis-à-vis capital, anti-Semitism encouraged German workers to identify as a racial people (*Volk*) vis-à-vis an exploitative, racialized enemy: “racism and anti-Semitism are substitutes for the class struggle” (Neumann 2009 [1944]: 125). The emphasis upon racial identity integrated German (Aryan) workers into a racial state while negating class struggles against capital. Anti-Semitism substituted the “Jew” for “capital” as the Schmittian political enemy that organized politics

and society along racial, rather than class, lines (Arendt 1976). Jews were “held in readiness as a scapegoat for all the evils originating in the socio-political system” (Neumann 2009 [1944]: 125; Žižek 2008: 140–4). Racial identity was not only implicated in definition of an internal political enemy, but also in the definition of external enemies and the project of German imperialism, defined as conquest of subordinate racial peoples. Together, anti-Semitism and racial identity supplanted class struggle with civil and imperial war (Neumann 2009 [1944]: 199). The social psychology of National Socialism, following Fromm, was sadomasochistic: insignificant, isolated persons forced to submit to leaders with compensating discharge of sadism directed at internal and external enemies. Liberal democracies thrive when democratic characters embrace equality, spontaneity, and free development. National Socialism, on the other hand, was fully hierarchical. Anti-Semitism provided the white working class with social ascendancy over racialized others. The racial *Volk* and the Nazi movement-state were strong when traditional, racial hierarchies were rigidly maintained and enforced. Nazis formed a reactionary middle-stratum fighting on two fronts: outwardly toward external enemies and downward to suppress internal enemies. Fueled by out-hating and down-hating, this reactionary middle stratum never fought “up” against elites, but masochistically embraced their domination while sadistically kicking down against enemies below.

The racial ideology of Trumpism is eerily similar. Racism in many forms (anti-Semitism, anti-Muslim, anti-Latino, and anti-Black) is rampant in Trump’s ethno-nationalist rhetoric and has been encoded in the policies of the Trump administration. Such ethno-nationalist appeals, replayed and rekeyed from time-worn tropes, indicate that the authority of Trumpism is not only charismatic but also traditional, rooted in “folk aesthetics” and conservation of racial and gender hierarchies (Krier 2019; Krier 2020: 140–1). Blacks, Mexicans, Muslims have rotated in turn as Schmittian enemies that are intensely down-hated by Trump supporters to psychologically elevate themselves in the social hierarchy. These groups have also rotated as external enemies out-hated by Trump supporters to purify and defend the racial people (*Volk*). Metonyms for racial enemies appear frequently, including “liberal,” “terrorist,” and “criminal.” Trumpism is held together by the perpetual ignition of Schmittian friend-enemy distinctions based upon traditional racial coding, augmented by the charismatic power of fear, hatred and aggression. The social psychology is more than just authoritarian or sadomasochistic, but destructive or necrophiliac in Fromm’s specific meaning (Fromm 1973; Kellner 2015). When linked to partisan warfare, as in National Socialism, racial friend-enemy distinctions can feed into decisions regarding and death that constitute a regime of *thanatopolitics* (Foucault 2003; Esposito 2008).

4 Space: The Final Frontier

Antisemitism and other ethnonationalist elements in National Socialism were fundamentally linked to what Schmitt called the *nomos* of the earth, elemental structures of autochthonous normative and ordering principles organically rooted over long duration in specific spatial territories (Schmitt 2006: 73–50). Following in the footsteps of avowedly racist and imperialist geographer Halford Mackinder, Schmitt contrasts the *nomos* of the earth (agrarian settlement, cultivation, and racial connection between “blood and soil”) with the *nomos* of the sea (maritime commerce, trade, industry, and rootless mobility) (Schmitt 2006, 2014a). The land and sea distinction is fundamental to Schmitt’s late thought and, in general, land-based cultures linked to illiberal continental empires (Russia, Austria, Prussia) receive positive valuation while sea-based cultures linked to liberal maritime nations (Western Europe, England, United States) receive negative valuation. Many of Schmitt’s core categories (friend-enemy distinction, tripartite state, sovereign dictator, the partisan, the *Volk*) and many of the policies of National Socialists can be located within the land and sea distinction (Meyer, Schetter, and Prinz 2012). Take partisanship for instance: one core defining trait of the partisan was a “tellurian character” (Schmitt 2004: 13–14). The partisan fights to defend a particular piece of land occupied and ordered by habitation and cultivation of long duration. The other three traits follow from this mystical, racial attachment of “blood and soil.” The partisan is not a professional soldier but remains rooted to the homeland and fights irregularly in its defense, deploying guerilla tactics, terrorism and the like. The partisan is animated by intense political commitment precisely because the enmity in partisan warfare threatens the partisan’s existence. To Schmitt, the mystical connection between blood and soil is entirely absent from sea cultures and the very concept of Reich is etymologically linked to the connection between the blood of a *Volk* (the *Mannring* of warriors who form a fence/wall as the original defensive political structure) and the soil they cultivate (Hutton 1999: 100–1). Though outside the scope of this chapter, the land-sea distinction was not only incorporated into National Socialism but also resonates in political theories of the contemporary Far-Right, including factions within Trumpism. Trump’s valorization of traditional, illiberal “red states” in the American “Heartland,” disdain for liberal, coastal “blue states,” intentional disturbance of international treaties, alliances, and organizations (NATO, G7, UN, Paris Accord), and “America First” economic populism repeats the folk aesthetics of National Socialism.

5 Death of Civil Society and the Destruction of the Administrative State

Neumann highlights how bourgeois civil society (in a Weberian not a Marxist sense) was a barrier to the rise of National Socialism. The Nazi party sought to evacuate civil society, disrupt spontaneous social life, and overwrite free association with regimented administration. Liberal democratic society (autonomous civil rights, voluntary association, free assembly, free speech) was the enemy of the Nazi state. To weld atomized masses to the Nazi order, civil associations were broken apart and replaced with party-controlled substitutes. The forced atomization of classes into masses was one of the reasons why Neumann viewed German people as largely indifferent to Nazism. They were not fervently bonded to Nazi structures but were prevented from associating outside of them, always subject to party oversight, surveillance and control. Of course, a strong, vibrant civil society might have been a barrier to the rise of Trumpism, but civil society has been in decay in the U.S. for many decades (see the massive literature on community decline associated with Putnam's *Bowling Alone*). In the contemporary US, churches remain as almost the sole voluntary association in civil society, a potential resource for left resistance.

However, the largest "fast-growth" churches in the U.S. are firmly aligned with the cultural right and frequently function as right-wing mobilizing structures, herding their flock toward nationalist, neo-liberal and neo-conservative candidates using a variety of hooks and crooks (abortion, gay marriage, gender). Outside of work, most Americans are tied to the wider world through the glowing screens of spectacle, which often places them in streams of data that confirm rather than challenge nationalist, capitalist and conservative views.

National Socialism's hostility to the bureaucratic state was linked by Neumann to its charismatic party structure: the rules, regulations and universal law of the state generated a "Big Other" that mediated conflicts through a stabilized symbolic structure. The bureaucratic state stood between individuals, establishing a normative order. Without the triadic function of the state, parties in conflict must engage in dyadic struggle of a zero-sum variety. The Big Other of the state enables aspirants and contenders to compete without destruction, generating win-win social surpluses.

By taking over the state, the Nazi party captured such social surpluses, enriching and empowering its members at the expense of the underlying society. The leadership principle and the massing of workers contributed to this exploitative situation. Leaders throughout the Nazi regime acted by arbitrary decision (decree) not by rational law. The power of the leader was

unconstrained and unchecked to such a degree that law itself vanished. At the end of the book, Neumann argues that National Socialism was not a state because the power of law did not exist, only arbitrary decision of the Führer (Neumann 2009 [1944]: 452).

National Socialism's supreme sovereignty attacked all agents of the Big Other that mediated disputes and settled questions of truth: the judiciary, science, disciplined scholarship, investigative journalism. All information that remained was propaganda (which Neumann defined as "violence against the soul") that advanced the interests of the Nazi party. The Trump administration has made similar moves for similar reasons. Trump advisor Steve Bannon's desire to destroy the administrative state targeted institutional agencies of the Big Other that made "triadic" decisions based upon analysis of data. Science, public schools, environmental agencies, labor department, health and human services, interior department, state department all have been identified for severe budget and staff cuts. The government departments that have escaped intact are those associated with "hard power," such as the military, police, and prison administration. Trumpism aims to remove these triadic structures that mediate between differentiated interests, thus reducing all action to dyadic friend-enemy extermination or zero-sum conflict. In the administration's response to the coronavirus, scientific experts were frequently sidelined and contradicted by political operatives concerned about the stock market, election optics, and approval ratings. Under Trumpism, the judiciary is also under siege, in part because it has been a safeguard of the rule of law, civil rights, and universal justice. In Trumpism, the judiciary is just another forum for friend-enemy struggle. Rather than providing impartial judgment of the Big Other, courts are being transformed into arenas for humiliation, defeat, and struggle between small others. Courts are not about justice, in this worldview, but "winning."

The Trump administration also seeks to "complete" the neoliberal project pursued by conservatives at least since Reagan, gutting social services, repealing health care, cutting minimum wage and labor protections, removing collective bargaining protections, and forthcoming cuts to social insurance coupled with removal of civil rights protections for those who protest or resist the regime. The Trump administration also refuses to submit to international authority or collective agreements and has already weakened U.S. support for multi-national associations like NATO, the G-20, and even the United Nations. This is, again, an attempt to remove the triadic function of universal law, a Big Other, such that all nations are placed upon a single plane of dyadic struggle for power and "negotiation." In such a system, the military and economic might of the U.S. will be leveraged to cut better "deals" in one-on-one bargains.

Both National Socialism and the Trump administration insisted upon preserving social and economic hierarchies while removing any triadic institution to serve as a “Big Other” that mediates between players in never ending friend-enemy dyadic struggles. Trump himself – a multi-billionaire by his own reckoning -- refuses to pay and legally attacks small contractors, small political actors, and even small children as enemies that must be annihilated. This is the mark of a Lacanian psychotic psyche: structure is missing, hence paranoid insecurity lets one be defeated and displaced from the social order.

Trumpism, ultimately, is historically conditioned by the waning of post-Fordism and neoliberalism. Fordism – the relatively egalitarian regime of stabilized mass production and mass production, coupled with social democratic redistribution of income to ensure full employment – was already in full retreat in the early 1970s. Post-Fordism – explosive growth in income and wealth inequality resulting from the globalization of industry, deregulation and destruction of the social democratic state – is now in its fifth decade. Fordism has been in decay longer than it was in construction. There is already little actual memory of what life was like under Fordism. It is no longer a memory, merely a myth, and a pastoral for the 21st century. National Socialism arose

during Fordism. As Neumann noted: “National socialism is built on full employment. That is its sole gift to the masses ... unemployment must be prevented so as to retain this one link that still ties the masses to its ruling class” (Neumann 2009 [1944]: 431). National Socialism, unlike Trumpism, actually provided employment, social insurance, old age benefits, health and accident insurance to the working (Aryan) masses. Compared to Nazism, Trumpism provides its supporters equal levels of sadomasochism and racial hatred, but far fewer economic benefits.

6 Conclusion

6.1 *So, Is Trump a New Hitler?*

After nearly four years in office, Trump remains at best a political dilettante, an outsider to the political process, who parlayed the display value of celebrity into incessant media attention and votes. By comparison, Hitler spent decades as a political operative, building the Nazi party and its extensive bureaucratic and paramilitary apparatus. Trump is approaching his mid-seventies, a narcissistic libertine accustomed to incredibly soft living and sycophantic adoration from those he pays to be near him. Hitler was in his early forties when the Nazi's seized power in Germany and had already bitten his cyanide pill at fifty-six. Given his age and lack of political commitment, it seems too late

for Trump to personally forge Trumpism into any kind of lasting movement or to completely reform the Republican Party in his ethnic nationalist image. Trump's sophomoric rhetorical skills and political ineptitude stand in marked contrast to almost any political leader. He has no obvious successor to replace him; his followers are heterogeneous and lack institutional stability. Given that charisma is always a vanishing form of domination, it remains possible that Trump will fail to prove his charismatic claims at some point and enough of his followers will cease to recognize his authority. He will appear to them – as he does to most of his non-supporters -- as a comic buffoon rather than a great political leader.

6.2 *Is Trumpism a New Form of Nazism?*

But the problem of Trumpism is larger than the person of Trump, and Trumpism exhibits many features that Neumann found in National Socialism. Both movements unite disparate, even contradictory “machines” into a single system: Nazism united a party apparatus, the military, the bureaucratic state and monopoly capital with a powerful racial ideology and charismatic leadership. Upon the election of Trump in 2016, Trumpism lacked such a party apparatus. In the early years of his presidency, the Republican Party was temporarily on loan to the Trump administration, but payment could be demanded at any point. However, by the time that Trump signed tax cuts into law in December of 2017, opposition to Trump within the Republican Party all but vanished. The Republican Party and Trumpism cross-pollinated: key notes in the folk aesthetics of Trumpism -- economic nationalism, ethno-nationalism, nativism, cronyism, unhidden corruption – became widespread themes in 2018 Republican election campaigns. The Republican Party backed the Trump administration strenuously to render ineffective both the investigation into Russian collusion and impeachment. At this point, the Trump administration is approximating Hobbes's characterization of parliamentary rule during the English civil war: a Behemoth of bad government, a “non-state, a chaos, a situation of lawlessness, disorder, and anarchy.” (see Hobbes 1889; see also Springborg 1995). This quote and the one that follows are taken from the frontispiece to the first English edition of Neumann's *Behemoth*: “Since we believe National Socialism ... has swallowed the rights and dignity of man, and is out to transform the world into a chaos by the supremacy of gigantic land masses, we find it apt to call the National Socialist system the Behemoth.”

The parallel here between Neumann and Schmitt's *nomos* of the earth is striking (Mastnak 2010). The new hybrid formed by Trumpism-Republican Party has created a system that bears many of the features of National Socialism. A tripartite state structure has emerged in which the constitutional,

bureaucratic U.S. state has been challenged by a partisan movement leading a newly energized ethno-nationalist *Volk*. This “movement-state” has come into control of administration (including the regular military) and has enriched many factions of capital. Though Trump’s charismatic leadership has been inept and bumbling, partisan leaders have been effective in their propagation of racialized ideologies that appeal to “heartland.” As Neumann noted, Nazism was grounded in a strong form of Schmittian decisionism, with a powerful unitary executive bypassing the legislature. The Trump administration, supported by the Republican partisans, has overridden constitutional separation of powers, neutered the legislative branch, stacked courts with partisan functionaries, and eliminated offices with the power to oversee and investigate administrative action. Once in power, National Socialism consolidated power by the declaration of a state of exception, strong friend-enemy distinctions deployed consistently and aggressively to sustain charismatic political power under the *Fuhrer* principle. Trumpism, though grounded in a charismatic movement, has likewise sought to erode the rule of law through (limited) states of exception, and has sought to define opponents (Democrats, the Press, Celebrities) as enemies with great force in an effort to increase political power. Due to Trump’s erratic, undisciplined pronouncements and the highly personal transference relationship between Trump and his avid supporters, the *Fuhrer* principle has so far been much less effective than under National Socialists, despite the best efforts of broadcast and social media affiliated with Trumpism-Republicanism.

In the early years of the Trump administration, despite an obvious desire to subvert norms of political civility central to liberal democracy, Trumpism was not able to suspend the rule of law in its entirety in a manner similar to National Socialism. The Trump administration’s executive orders have been partially negated by judicial review, and legislative processes and inquiries were instituted that partially constrained and controlled attempts to increase executive authority. While National Socialism developed a strong, partisan, paramilitary apparatus to override and dominate the state (including the regular military), the Trump administration has had less success and lacks a partisan paramilitary enabling domination of the administrative state and military.

Finally, Nazism was fundamentally tied to the historical moment of Fordism and delivered to its (Aryan) adherents full employment and a basic array of social insurance and welfare protections. Trumpism is tied to the historical moment of waning post-Fordism and neoliberalism, and despite nationalist rhetoric promising to bring manufacturing jobs back to America, the administration seems primarily focused upon completing the neoliberal project of dismantling the social insurance, welfare, regulatory and taxation systems. While National Socialism provided jobs and benefits to adherents, Trumpism enters

its fourth year in power with massive unemployment, a record budget deficit, and no clear plan to provide jobs or prosperity to even its most fervent ethnic nationalist supporters.

By comparing the Trump administration to Neumann's portrait of National Socialism, it is apparent that the aging, clownish, dilettante Trump is a rather pathetic Fuhrer. Because his moment on the world stage will soon pass, our attention and concern focus much more upon comparisons between Trumpism and National Socialism. In less than four years, the new hybrid Trumpism-Republican party has followed the National Socialist playbook closely and has laid the groundwork for a complete "movement state" in the Nazi manner. The US may be only a single "state of exception" away from the transformation of the U.S. into something approximating National Socialism.

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